

TENTATIVE RULING

Case: **Tobia v. Hybe Corporation**
Case No. CV2024-2227

Hearing Date: **August 26, 2026** **Department Thirteen** **9:00 a.m.**

Motion to quash:

The Court notes that specially appearing defendant Hybe Co. Ltd.'s ("Hybe") notice of motion to quash designated a hearing date on the motion more than 30 days after filing of the notice. (Code Civ. Proc., § 418.10, subd. (b) ["[t]he notice shall designate, as the time for making the motion, a date not more than 30 days after filing of the notice".]) Nonetheless, the Court will consider the merits of Hybe's motion. (*Olinick v. BMG Entertainment* (2006) 138 Cal.App.4th 1286, 1296 [scheduling a hearing date beyond the 30-day time period does not deprive the court of jurisdiction to consider the merits of the motion].)

Hybe's motion to quash for lack of personal jurisdiction is **GRANTED**. (Code Civ. Proc., § 418.10, subd. (a)(1).) "When a defendant moves to quash service of process on jurisdictional grounds, the plaintiff has the initial burden of demonstrating facts justifying the exercise of jurisdiction." (*Vons Companies, Inc. v. Seabest Foods, Inc.* (1996) 14 Cal.4th 434, 449; see also *Farina v. SAVWCL III, LLC* (2020) 50 Cal.App.5th 286, 294-295; *Burdick v. Superior Court* (2015) 233 Cal.App.4th 8, 18.) The Court finds that plaintiff has failed to satisfy her burden.

The Court orders that Hybe is not a party to this action, and all claims by plaintiff against Hybe are **DISMISSED**. (Code Civ. Proc., § 418.10, subd. (a)(1).)

The notice of motion does not provide notice of this Court's tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

Demurrer:

Plaintiff filed an untimely opposition. (Code Civ. Proc., § 1005, subd. (b) [all papers opposing a motion must be filed with the court and a copy served on each party at least nine court days before the hearing].) The Court declines to consider plaintiff's late-filed opposition or any documents submitted in support thereof. (Cal. Rules of Court, rule 3.1300(d); *Rancho Mirage Country Club Homeowners Assn. v. Hazelbaker* (2016) 2 Cal.App.5th 252, 262 [stating that "a trial court has broad discretion to accept or reject late-filed papers."].)

Given the Court's order on Hybe's motion to quash for lack of personal jurisdiction, Hybe's demurrer to plaintiff's first amended complaint is **DROPPED FROM CALENDAR AS MOOT**. (Code Civ. Proc., § 430.10, subs. (e), (f).)

The notice of motion does not provide notice of this Court's tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

Motion for leave to amend complaint and stay:

Plaintiff's motion for leave to amend complaint and stay as to Hybe is **DENIED**. (Code Civ. Proc., § 473, subd. (a); Cal. Rules of Court, rule 3.1324.) Given the Court's ruling on Hybe's motion to quash, Hybe is no longer a party to this case. (Code Civ. Proc., § 418.10, subd. (a)(1).) Plaintiff's motion for leave to amend complaint and stay as to Hosek Jeong Jung is **DENIED WITHOUT PREJUDICE**. (Code Civ. Proc., § 473, subd. (a); Cal. Rules of Court, rule 3.1324.) The Court finds that plaintiff's motion fails to (1) include a copy of the proposed amendment or amended pleading, which must be serially numbered to differentiate it from previous pleadings or amendments; (2) state what allegations in the previous pleading are proposed to be deleted, if any, and where, by page, paragraph, and line number, the deleted allegations are located; and (3) state what allegations are proposed to be added to the previous pleading, if any, and where, by page, paragraph, and line number, the additional allegations are located. (Cal. Rules of Court, rule 3.1324(a).)

The notice of motion does not provide notice of this Court's tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

Case management conference:

On the Court's own motion, the case management conference is continued to **November 23, 2026**, at 9:00 a.m. in Department Thirteen.